

Bostock v Clayton County

By 2020, several employees were fired solely because they were either gay or transgender. The employees sued under Title VII of the Civil Rights Act of 1964, which prohibits employment discrimination “because of... sex”. Lower courts were divided on whether discrimination based on sexual orientation or gender identity constituted sex discrimination under Title VII. The Supreme Court consolidated the cases to decide this issue. So, under Title VII of the Civil Rights Act of 1964, does firing someone for being LGBTQ constitute discrimination “because of sex”?

Title VII makes it unlawful for an employer to discriminate against an individual “because of... sex”. The Court focused on the ordinary public meaning of the statute’s language in 1964, when the law was enacted. The Court reasoned that it is impossible to discriminate against a person for being LGBTQ without also discriminating on the basis of sex, because one must consider the person’s sex to make that judgement. For example, an employer might fire a man for being attracted to men. But if the same employer wouldn’t fire a woman for the same offense, then sex is clearly a factor. Even while assuming that in 1964, “sex” referred strictly to biological distinctions between male and female, the act of firing someone due to sexual orientation or gender identity still involves sex-based reasoning. The Court emphasized in writing: what matters is what the law says, not what Congress intended at the time.

So in conclusion, the Supreme Court held that Title VII’s prohibition on sex discrimination includes discrimination based on sexual orientation and gender identity. Employers who fire individuals for being LGBTQ violate federal law.

Decker v Northwest Environmental Defense Center

The clean water act requires that National Pollutant Discharge Elimination System (NPDES) permits be held by entities in order to engage in activities that discharge pollutants that discharge pollutants from any point source into navigable waters. The Environmental Protection Agency (EPA) concerns include logging operations. Permits are required unless discharges are composed only of stormwater. Hence, permits are needed at sawmills and where logs are sorted, but are not required for runoff along logging roads.

By 2012, Georgia-Pacific (G-P) contracted with the state of Oregon to harvest timber in state forests. Rainwater running off logging roads used by G-P entered nearby rivers. The Northwest Environmental Defense Center (NEDC) filed a citizen lawsuit against G-P, the state of Oregon, and the EPA, arguing that these discharges required NPDES permits under the Clean Water Act. The district court dismissed the suit, finding that logging roads were not industrial operations. The Ninth Circuit Court of Appeals reversed, holding that stormwater runoff from logging roads was associated with industrial activity and therefore required a permit. Defendants appealed to the US Supreme Court. So, does channeled stormwater runoff from logging roads used for timber harvesting require an NPDES permit under the Clean Water Act as "discharges associated with industrial activity"?

Under the Clean Water Act and the EPA's Industrial Stormwater Rule, discharges of stormwater require NPDES permits only if they are "associated with industrial activity." The EPA's interpretation of its own regulations is entitled to deference unless it is plainly erroneous or inconsistent with the regulation. The Court deferred to the EPA's interpretation that logging roads do not fall under the category of "industrial activity" as defined in the regulation. The EPA

reasoned that the rule was intended to apply to fixed industrial sites like sawmills, not to more transitory or non-fixed operations like forest logging roads. Additionally, the Court noted that Oregon has a comprehensive system of best practices to manage stormwater from logging roads, and further federal regulation could be redundant or counterproductive.

So the US Supreme Court reversed the judgement of the Court of Appeals and held that NPDES permits are not required for stormwater runoff from logging roads under the current EPA regulations, deferring to the agency's reasonable interpretation.